

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
NATIONAL NUCLEAR SECURITY ADMINISTRATION
Electric Utility Supply and Services
Contract No. GS-00P-17-BSD-1225/89233122FNA400410
November 13, 2024

I. AGENCY IDENTITY AND CONTRACTING OFFICE

The Office Partnership and Acquisition Services (PAS) of the U. S. Department of Energy (DOE), National Nuclear Security Administration (NNSA) plans to contract for electric utility supply and services on behalf of the NNSA Pantex Field Office (PFO) by means of other than full and open competition. The contracting activity is the PAS, Specialty Acquisition Branch (NA-PAS-311).

II. NATURE AND/OR DESCRIPTION OF THE ACTION BEING APPROVED

This document sets forth the justification and approval of the use of one of the exceptions to full and open competition allowed under the Competition in Contracting Act (CICA) of 1984, 41 U.S.C.253.

The new action is planned as a firm fixed priced (FFP) contract with a ten (10) year period of Performance. The contract will be awarded under the General Services Administration (GSA) Areawide Public Utility Contract to Southwestern Public Service Company (SPS) to provide electric utility and related services in support of the PFO.

III. DESCRIPTION OF SUPPLIES AND/OR SERVICES

NNSA PFO intends to acquire electric supply, load balancing, transmission delivery services, power system monitoring and dispatch services, and relay coordination services (load following demand), and allow for the sale of excess produced electricity generated by the "Wind Farm" in support of national defense requirements.

PFO is currently receiving electric supply and service from SPS, a division of Xcel Energy, a regulated Utility Service Provider under the rules and regulations of the Public Utility Commission of Texas and its franchises serving Amarillo, Texas.

The total estimated value for the 10 year FFP acquisition is \$36,135,930.

IV. AUTHORITY

The statutory authority permitting other than full and open competition is 41 USC 3304(a)(1), as implemented by Federal Acquisition Regulation (FAR), Subpart 6.302-1 entitled "Only One Responsible Source and No Other Supplies or Services will Satisfy Agency Requirements".

V. APPLICATION OF AUTHORITY

FAR Subpart 6.302-1(b)(3) states, " Use of this authority may be appropriate in situations such as when acquiring utility services, circumstances may dictate that only one supplier can furnish the service; or when the contemplated contract is for construction of a part of a utility system and the utility company itself is the only source available to work on the system. FAR Subpart 41.204(c) requires that "any Federal agency having a requirement for utility services within an area covered by an areawide contract shall acquire services under that areawide contract." SPS' Contract GS-00P-17-BSD-1225 is the one GSA Areawide contract covering the Amarillo, Texas geographical area.

Furthermore, in accordance with FAR Subpart 41.201(d)(1), "Section 8093 of the Department of Defense Appropriations Act of 1988, Pub. L. 100-202, provides that none of the funds appropriated by that Act or any other Act with respect to any fiscal year by any department, agency, or instrumentality of the United States, may be used for the purchase of electricity by the Government in any manner that is inconsistent with state law governing the providing of electric utility service, including state utility commission rulings and electric utility franchises or service territories established pursuant to the state statute, state regulation, or state-approved territorial agreements." Therefore, an acquisition of electric services in support of the PFO located in Amarillo, Texas must comply with the conditions and rulings associated with the Public Utility Commission of Texas and its franchised areas. SPS is the only Public Utility Commission of Texas provider of electrical supply and service within the franchised electric service territory of the PFO and capable of providing tariff-based electric supply and related services.

VI. EFFORTS TO IDENTIFY ADDITIONAL SOURCES

The Contracting Officer reviewed the current GSA Areawide Public Utility Contract listing. SPS was the only source identified with a GSA Areawide contract covering the Amarillo, Texas geographical area.

Pursuant to FAR Subpart 5.202(a)(5), a notice of this proposed action is not being published in www.sam.gov, since it is a contract action for utility services and only one source is available.

VII. DETERMINATION OF REASONABLENESS OF COST OR PRICE

The Contracting Officer has determined that the anticipated costs or price will be fair and reasonable based on comparative analysis of the established GSA price list and the tariff rates set by the Public Utility Commission of Texas in the franchised area.

VIII. MARKET RESEARCH

The market survey revealed that SPS is the only known supplier with the ability to provide electric utility service to PFO in Amarillo, Texas.

IX. OTHER FACTS

None.

X. INTERESTED SOURCES

None.

XI. STEPS TO FOSTER COMPETITION

Given the statutory and regulatory requirements associated with acquiring electric services, no further steps are required or can be taken at this time to increase competition for this procurement.

XII. CERTIFICATIONS

Acquisition Initiator/Technical Representative:

I certify that the facts and representations under my cognizance, which are included in this justification, and which form a basis for this justification, are complete and accurate.

Stephanie L. Carlton
Digitally signed by
Stephanie L. Carlton
Date: 2025.02.18 11:20:40
-06'00'

Signature

02/18/2025

Date

Contracting Officer:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

Shafesha Donley
Signature

02/18/2025

Date

Head of Contract Activity:

I have reviewed this justification and find it to be accurate and complete to the best of my knowledge and belief. Since this JOFOC does not exceed \$75M, this review serves as approval

Signature

Date